

Brij Kishore Rai v. State of U.P.

Allahabad High Court · Division Bench · 7 November 2014 · Writ-C No. 57451 of 2014 · Writ - C No. 57451 of 2014 · **Writ disposed; billing/meter grievance relegated to Executive Engineer under Clause 6.5.**

HEADNOTE

Nearly two years' unpaid electricity bills made disconnection not unjustified. Complaints that no meter was installed or was defective, and that bills were arbitrary, were left to the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. A suitable application was to be decided by a reasoned order, preferably within three weeks; reconnection would follow within one week of payment of any amount found due.

FACTUAL SUMMARY

The petitioner, given an electricity connection in 2010, alleged that no meter had been installed or that it was not functioning, and that bills were arbitrary. A demand of Rs 34,454 payable by 31 October 2013 went unpaid; the last payment was of 31 January 2013. After nearly two years of non-payment the line was disconnected. He sought a writ for reconnection, a genuine bill, and an enquiry into the Power Corporation's irregularities.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

[billing-objection-to-executive-engineer-under-6.5](#)

HOLDING

Where the consumer had admittedly not paid electricity bills for almost two years, disconnection was not unjustified. Grievances about non-installation or malfunction of the meter and about the bills lay before the Executive Engineer under Clause 6.5. The writ was disposed of directing that if the petitioner filed a suitable application with a certified copy of the order, the Executive Engineer would consider and decide it in accordance with law by a reasoned speaking order, preferably within three weeks; if any bill was found payable, the line would be reconnected within one week of payment. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A METER WAS INSTALLED OR FUNCTIONING, AND WHETHER THE BILLS WERE ARBITRARY OR WHAT AMOUNT WAS DUE

Left to the Executive Engineer under Clause 6.5. ¶ 2

NOT DECIDED — PRAYER FOR AN ENQUIRY INTO IRREGULARITIES OF THE POWER CORPORATION

¶ 1-2